

		agreement. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) The arbitration agreement applies to “all claims or cause of action that the Employee may have against the Company.” (Grzywacz Decl., Ex. A, p. 1.) Plaintiff does not argue that the claims in his complaint are not covered by this provision. Plaintiff has not established the arbitration agreement is unconscionable. No admissible evidence was offered that the agreement is a contract of adhesion. To the contrary, the agreement states twice that signing it was not a condition of employment. Plaintiff has also failed to show the agreement is substantively unconscionable. No authority is cited that an arbitration agreement is unconscionable because it covers claims against third parties. While the costs of arbitration may be unconscionable if they have an impact on an employee’s ability to vindicate statutory rights, under Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 118, this is sufficiently ameliorated by the employer’s agreement to pay all of the costs unique to arbitration. This includes the arbitration filing fee. Therefore, although the arbitration agreement says that some of the filing fee is to be paid by Plaintiff, as a condition of this order, Defendant shall pay the entirety of the initial arbitration fee.
111	Le v. CUIAB, 2026-01538470	CONTINUED, OSC RE DISMISSAL SET BY COURT
112	McGrew v. Heimbuch, 2025-01535253	MOTION TO SET ASIDE/VACATE DEFAULT – GRANTED MOTION FOR LEAVE TO FILE DEMURRER – GRANTED Defendant Jeff Heimbuch (“Defendant”) moves for an order setting aside default and granting him leave to file a demurrer to plaintiff Shannon McGrew’s (“Plaintiff”)

	Complaint. Defendant also requests a stay of discovery pending final resolution of the demurrer. The court is empowered to relieve a party “upon any terms as may be just . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473(b).) Application for an order for relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Ibid.) The law strongly favors an exercise of discretion in favor of granting relief so that matters can be heard on their merits. (Shapiro v. Clark (2008) 164 Cal.App.4th 1128, 1139.) “ ‘Because the law favors disposing of cases on their merits, “any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” ’ ” (Ibid.) For instance, in Shapiro, the appellate court held that because the defendant’s delay in attempting to plead was minimal and she had not wholly neglected her responsibility to plead, “the record show[ed] an adequate justification” for the failure to timely respond and “[i]n such a case scarcely any excuse is needed to justify the lifting of a default.” (Id. at pp. 1140-1141.) Defendant was served by personal service on 1/15/26. In lieu of filing an answer or demurrer, Defendant filed a special motion to strike, which was denied on 4/20/26. On 5/5/26, Plaintiff emailed Defendant and advised that if an answer was not filed and served by 5/11/26, Plaintiff would proceed with the entry of default. On 5/11/26, Defendant filed a motion for leave to file a late demurrer and Plaintiff had default entered on 5/12/26. Defendant argues his failure to timely file a demurrer was due to his pursuit of his anti-SLAPP motion, which was done in good faith. He contends that after the anti-SLAPP motion was denied, he diligently researched procedural law and identified two potentially dispositive defenses and in good faith believed a motion for leave to file a late demurrer was the proper vehicle. He further argues that Plaintiff will suffer no prejudice if a late
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		demurrer is permitted, as this case is still in the early stages. Defendant's Motion to Vacate Default was timely filed within six months of the entry of default. The Court finds that Defendant's failure to timely file a demurrer has not caused any prejudice to Plaintiff. Defendant was given until 5/11/26 by Plaintiff and Defendant did not wholly neglect his responsibility to do so. Instead, he attempted to act timely by filing the motion for leave to file a late demurrer within the deadline imposed by Plaintiff. Further, the Court finds Defendant's failure to timely file a demurrer because he instead pursued a special motion to strike appears reasonable and excusable. Thus, in light of the policy of resolving any doubts in favor of the party seeking relief, Defendant's Motion to Vacate Default and Motion for Leave to File Demurrer are GRANTED. Defendant's request to stay all discovery pending resolution of the demurrer is DENIED. While discovery was stayed pending resolution of the anti-SLAPP motion pursuant to statute, there is no basis for Defendant's request for a stay with regard to the demurrer. Defendant is ORDERED to file and serve his demurrer within 10 days upon notice of this order. Moving party to give notice.
113	National Funding v. Firstclassrides, 2025-01499184	MOTION FOR SUMMARY JUDGMENT – GRANTED Plaintiff NATIONAL FUNDING, INC. ("Plaintiff") moves for an order granting summary judgment against Defendants FIRSTCLASSRIDES LLC dba FIRST CLASS RIDES and ANTONIO GRAVES (collectively, "Defendants") as to the claims alleged against them by Plaintiff. 7/23/2025 Plaintiff filed a Complaint against Defendants for Breach of Contract. The requisite elements for a prima facie showing of breach of contract are (1) existence of a contract, (2) the plaintiff's performance or excuse for non-performance, (3) defendant's breach, and (4) damage to plaintiff therefrom. (See Wall Street Network, Ltd. v. New York